

The M.P. Wildlife (Wild Pig) Eradication Rules, 2003

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State of Madhya Pradesh - Act

The M.P. Wildlife (Wild Pig) Eradication Rules, 2003

MADHYA PRADESH

India

The M.P. Wildlife (Wild Pig) Eradication Rules, 2003

Rule THE-M-P-WILDLIFE-WILD-PIG-ERADICATION-RULES-2003 of 2003

Published on 26 July 2003

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The M.P. Wildlife (Wild Pig) Eradication Rules, 2003

Published vide Notification No. 22-285-1999-10-2, M.P. Rajpatra (Asadharan), dated 26-7-2003 at p 790 (3)

In exercise of the powers conferred by Section 64 of the Wildlife Protection Act, 1972 (No. 53 of 1972), the State Government hereby makes the following rules, namely :-

1.

Short title, extent and commencement.

(1)

These rules may be called the Madhya Pradesh Wildlife (Wild Pig) Eradication Rules, 2003.

(2)

They extend to the whole of the State of Madhya Pradesh.

(3)

They shall come into force with effect from the date of publication in the Madhya Pradesh Gazette.

2.

Definitions.

- In these rules, unless the context otherwise require :-

(a)

"Act" means the Wildlife Protection Act, 1972 (No. 53 of 1972);

(b)

"Authorised Officer" means a person appointed by the State Government under Section 4 of the Act, for carrying out the duties prescribed under clause (b) of sub-section (1) of Section 11 of the Act within the limits of the district;

(c)

"Form" means a form appended to these rules;

(d)

"District level hunter" means a person who has been authorised to hunt wild pig within the limits of a revenue district under the provisions of these rules;

(e)

"Chief Wildlife Warden" means a person appointed as such under clause (a) of sub-section (1) of Section 4 of the Act;

(f)

"Gun" means a fire arm that can be used to fire bullets and the permission to use it can be granted to general public under Arms Act, 1959 (No. 54 of 1959);

(g)

"Local hunter" means a person who is the owner of land in a village and has been authorised to hunt wild pig within the limits of the village under the provisions of these rules.

3.

Appointment of the Authorised Officer.

- The State Government may appoint the Sub-Divisional Officer Revenue as authorising the killing of wild pig within their respective jurisdiction.

4.

Jurisdiction of Hunting.

(1)

The Authorised Officer shall not issue permission to hunt to those pigs who are damaging crops within the limits of Reserve Forest and Protected forest.

(2)

The Authorised Officer shall not issue permission to hunt wild pig inside the areas declared as National Park and Sanctuary and upto a distance of 5 Kilo Metre in the buffer including revenue areas from the boundary of National Park and Sanctuary.

(3)

The Authorised Officer may issue permission to hunt wild pigs only in revenue and agricultural areas not falling in the areas mentioned in sub-rules (1) and (2) above.

5.

Determination of the number of wild pig causing crop damage by the authorised officer.

(1)

Before granting permission to hunt those wild pigs who are damaging crops the Authorised Officer shall ensure that there is no alternative other than hunting. These wild pigs neither can be caught nor can they be tranquilised and translocated to other places.

(2)

The Authorised Officer may give permission to hunt a maximum of 5 wild pigs in one permit.

6.

Permission by the Authorised Officer.

(1)

The permission to the hunter shall be granted by Sub-Divisional Officer (Revenue) to hunt the wild pig. The hunter may hunt wild pig only in such area for which the permission is granted :-

(a)

Local Hunter. - Local hunters shall be authorised to hunt wild pig in their own village in which they have their own land on payment of Rs. 100/- as registration fees in addition to Rs. 100/- per wild pig as royalty.

(b)

District level hunter. - A district level hunter shall be registered within the limits of a district. The registration fees for a district level hunter shall be Rs. 1000/- per permit. The permit shall be valid for one year and a royalty at the rate Rs. 100/- per wild pig shall have to be deposited in addition to registration charges.

(2)

The registration fees and royalty obtained from hunters shall be the revenue of the Government and shall be deposited in the Government Treasury.

(3)

The Authorised Officer shall grant permission to hunt wild pig in Form-1. The Authorised Officer shall maintain a record of permission issued in a register. The format of the Register shall be in Form-2.

(4)

Wild Pig shall be hunted by using only a gun. Hence it shall be essential for a hunter to have a valid arms licence under the Arms Act.

(5)

The permission granted by the Authorised Officer shall be non transferable.

7.

Responsibilities of the hunter.

- The permission granted to the applicant shall be subject to the provisions of relevant Central/State and Local laws and rules. The local traditions shall also be taken into consideration.

8.

Period of the permission.

- The permission to hunt wild pig granted by the Authorised Officer shall be valid for a maximum period of one year.

9.

Intimation by hunter on completion of hunting.

- After the completion of a period of one year or after 5 wild pigs have been killed, the hunter shall give an intimation to this effect to the Sub-Divisional Officer (Revenue). The intimation shall include details of animals hunted and shall be submitted in Form 3.

10.

Cancellation of the permission to hunt.

(1)

The permission to hunt shall be deemed to be cancelled after the expiry of the period for which the permission is valid.

(2)

The Authorised Officer may cancel the permission at any time if the hunter violates the provisions of these rules or the Act, after giving reasonable opportunity of being heard.

11.

Information by the Authorised Officer to the Chief Wildlife Warden regarding permission granted by him to hunt the wild pig.

(1)

It shall be compulsory for the Authorised Officer to inform the Chief Wildlife Warden, every six months about the permissions to hunt granted by him. A copy of the information be sent to Chief Wildlife Warden.

(2)

The Authorised Officer shall send information about the number of animals permitted to be hunted and the number of animals actually hunted in a calendar year to the Chief Wildlife Warden. This information shall be sent after being complied in Form-3. It shall be mandatory to send this information by the 31st of January of the next year.

12.

Review by the Chief Wild Life Warden.

- Chief Wild Life Warden shall review the permissions granted by the Authorised Officers. On the basis of this review, he will give directives to the Authorised Officers and also determine the number of wild pig allowed to be hunted within the

limits of their jurisdiction.

13.

Prohibition of trade of wild animals and animal articles.

- Subject to the provisions of the Section 44 of the Act, trade and commerce in wild animals and animal articles is prohibited. No trade of carcasses of wild pig or any of their organs shall be allowed under these rules.

Form-I

[See Rule 6 (3)]

Order/permit

No.....

Dated

Office of the Sub-Divisional Officer (Revenue)

.....Sub-Division.....District.....

Mr. S/o Shri.....is a resident of.....(Address) is hereby allowed to hunt.....(number) wild pig as per the notification No dated of the Department of Forests, Government of Madhya Pradesh subject to the conditions given below :-

1. This permission shall be valid upto 31st December.....or untilwild pig have been hunted.
2. It is certified that these wild pigs cannot be caught nor they can be tranquilised and translocated to other places.
3. This permission shall not be valid in forests, inside and upto a distance of 5 Kilo Metre from the boundaries of National Parks and Sanctuaries.
4. This permission is non-transferable.

Authorised Officer.

Form-II

[See Rule 6 (3)]

Record of Wild Pig Permitted to be Killed

S. No.

Name of Hunter with Father's Name

Address of hunter

Date of granting of permission

Number of wild pig permitted to be hunted

Name of village-district where hunting is permitted

No. of licence

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Authorised Officer

Form-III

[See Rule 9]

Information of Wild Pig Killed By Hunting To Be Given To Authorised Officer

Name of the Hunter

Address of the hunter

Number and date of the permission alongwith the number of wild pig granted by the authorised officer

Details of each wild pig killed

Name of village where hunting done

Remarks

Sex

Estimated weight

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Signature of Hunter

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